

25NWCV00855 25NWCV00855

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25NWCV00855 Hearing Date: September 2, 2026 Dept: D

HANS E. GARCIA V. HYUNDAI

MOTOR AMERICA, et al.

CASE NO.: 25NWCV00855

HEARING: 09/02/2026 @ 9:30 a.m.

#16

TENTATIVE ORDER

Plaintiff Hans E. Garcia's

motion for sanctions is GRANTED. Defendant Hyundai Motor America's counsel, Theta Law Firm, LLP is ordered to pay \$2,500.00 in monetary sanctions to Plaintiff Hans E. Garcia within 15 business days of the Court's Order.

Moving party(s) to give notice.

Plaintiff Hans E. Garcia moves

for an order issuing monetary sanctions in the amount of \$2,500.00 against Theta Law Firm, LLP, counsel of record for Defendant Hyundai Motor America.

Background

On March 11, 2025, Plaintiff Hans

E. Garcia filed a lemon law action against Defendants Hyundai Motor America and Downey Hyundai alleging causes of action for (1) violation of Song-Beverly Act – breach of express warranty, (2) violation of Song-Beverly Act – breach of

implied warranty, (3) violation of the Song-Beverly Act Section 1793.2(b), and (4) violation of Civil Code Section 1796.5.

On March 24, 2026, Defendant Hyundai Motor America ("Defendant") filed its answer.

Defendant did not serve its initial disclosures until July 16, 2026.

Plaintiff seeks sanctions for Defendant's failure to serve initial disclosures within 60 days of his answer and thus filed the instant motion on June 18, 2026.

On August 21, 2026, Defendant filed its opposition. On August 26, 2026, Plaintiff filed a reply.

Legal Standard

"Unless the party failing to comply with this section shows good cause, notwithstanding any other law and in addition to any other sanctions imposed pursuant to this chapter, a court shall impose sanctions as follows:

(1) A . . . two-thousand-five-hundred-dollar (\$2,500) sanction against the defense attorney respectively, paid within 15 business days for failure to comply with the document production requirements as prescribed in subdivision (b)." (Code Civ. Proc., § 871.26, subd. (j).)

Analysis

Plaintiff seeks monetary sanctions in the amount of \$2,500.00 against Defendant's counsel pursuant to Code of Civil Procedure section 871.26 subdivision (j)(1). Plaintiff argues that as of June 17, 2026, Defendant failed to serve its initial disclosures pursuant to Code of Civil Procedure section 871.26 subdivision (b). (Declaration of Anthony P. Greco ("Greco Decl."), ¶ 5.)

"Within 60 days after the filing of the answer or other responsive pleading, all parties shall, without awaiting

a discovery request, provide to all other parties an initial disclosure and documents pursuant to subdivisions (f), (g), and (h).” (Code Civ. Proc., § 871.26, subd. (b).) Because Defendant filed its answer on March 24, 2026, the time to serve initial disclosures and documents was May 23, 2026. Thus, sanctions are warranted unless Defendant shows good cause as to why sanctions should not be imposed. (Code Civ. Proc., § 871.26, subd. (j)(1).)

Defendant fails to show that there is good cause to not impose sanctions and focuses its argument only on the fact that Plaintiff has not shown that there is an absence of good cause. Defendant has failed to show that it is Plaintiff's burden to establish the absence of good cause. In fact, section 871.26 subdivision (j) clearly states “[u]nless the party failing to comply with this section shows good cause, notwithstanding any other law and in addition to any other sanctions imposed pursuant to this chapter, a court shall impose sanctions as follows . . .” which clearly places the burden on Defendant to show good cause. (Code Civ. Proc., § 871.26, subd. (j) [emphasis added].) Because Defendant only complied with section 871.26 after the instant motion was filed and Defendant has failed to show there is good cause to not impose sanctions, the Court grants Plaintiff's request for sanctions.

Conclusion

Plaintiff Hans E. Garcia's motion for sanctions is GRANTED. Defendant Hyundai Motor America's counsel, Theta Law Firm, LLP is ordered to pay \$2,500.00 in monetary sanctions to Plaintiff Hans E. Garcia within 15 business days of the Court's Order.